

24STCV32313 24STCV32313

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-13

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Case Number: 24STCV32313 Hearing Date: August 13, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

GUILLERMO PLAZA

vs.

FCA US, LLC, et al.

Case

No.: 24STCV32313

Hearing Date: August 13, 2026

FCA's motion

for summary judgment is GRANTED.

On

12/19/2024, Plaintiff Guillermo Plaza (Plaintiff) filed suit against FCA US, LLC, and Bravo Chrysler Dodge Jeep Ram of Alhambra (Bravo DCJR), alleging violations of the Song-Beverly Warranty Act.

On

5/13/2026, Defendant FCA US, LLC (Defendant or FCA moved for summary judgment, or in the alternative, summary adjudication of Plaintiff's Complaint.

The

motion is unopposed.

Discussion

Defendants

argue that Plaintiff cannot establish any of his claims because: (1) as to the first cause of action, he cannot show there was a nonconformity in the vehicle that Ford failed to repair under warranty after a reasonable number of repair attempts; (2) as to the second cause of action, Plaintiff cannot establish that any warranty repair took more than 30 days; (3) as to the third cause of action, Plaintiff cannot establish that Ford failed to provide sufficient literature and replacement parts to authorized service and repair facilities; and (4) as to the fourth cause of action, Plaintiff cannot establish that the vehicle was unfit for ordinary purposes during the implied warranty period.

As to the

first cause of action, to establish a Song-Beverly violation under Civil Code section 1793.2(d), a plaintiff must prove: (1) the Vehicle had a nonconformity covered by the express warranty that substantially impaired its use, value, or safety; (2) the Vehicle was presented to an authorized representative for repair; and (3) the manufacturer or its representative failed to repair the nonconformity after a reasonable number of repair attempts. (*Donlen v. Ford Motor Co.* (2013) 217 Cal. App. 4th 138, 152, citing *Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal. App. 4th 1094, 1101.)

Here,

Defendants submitted evidence that the undisputed repair history establishes that Plaintiff did not complain of or experience any of the Alleged Issues or issues related to an Engine Defect with the Subject Vehicle during the warranty period. (UMF 5-12.) The repair history shows that during the Vehicle's Basic Limited Warranty, Plaintiff presented the Subject Vehicle to Defendant Dealership three times, in which only recalls had been performed. (UMF 6-8.) Plaintiff presented the Subject Vehicle to the Defendant Dealership for a check engine light on 3/24/2025, which was caused by an open circuit no longer covered under warranty. (UMF 9-11.)

Accordingly,
the Court agrees that Plaintiff cannot establish a Violation of California Civil Code § 1793.2(d) as FCA was never afforded a reasonable number of repair attempts for any alleged nonconformity with the Subject Vehicle. Importantly, Plaintiff did not present the Subject Vehicle to Defendant Dealership for the alleged Engine Defect or any of the related Alleged Issues under warranty. (UMF 17.)

Accordingly,
the Court finds no triable issue of material fact exists as to the first cause of action. The Court takes Plaintiff's non-opposition to be a concession on the merits.

As for the
second and third causes of action, Defendants submitted evidence that the repair order records show that during the Vehicle's Basic Limited Warranty from 2022 to 2024, Plaintiff brought the Subject Vehicle to the Defendant Dealership three times for recall visits. (UMF 5-8.) The repair records do not support that Plaintiff ever brought the Subject Vehicle to an FCA-authorized dealership for the alleged Engine Defect or any of the Alleged Issues in his complaint. (UMF 17.) Likewise, the undisputed evidence establishes that Plaintiff's Subject Vehicle was never out of service for 30 cumulative days during the Basic Limited Warranty regarding the alleged Engine Defect or any of the Alleged Issues in their complaint. (UMF 18.) Additionally, Plaintiff has not alleged nor identified any prolonged repair period that was related to the issues alleged in her complaint. (UMF 18.)

Since the
Subject Vehicle was never brought to Defendant Dealership for an attempt to repair any of the issues alleged in their Complaint, the repair facilities and parts requirement under section 1793.2(a)(3) is not applicable. The fact that Plaintiff did not bring the Subject Vehicle in for repairs of the alleged Engine Defect or Alleged Issues cannot support a section 1793.2(b) or section 1793.2(a)(3) claim.

Accordingly,
the Court finds no triable issue of material fact exists as to the second or third causes of action. The Court takes Plaintiff's non-opposition to be a concession on the merits.

As for the

fourth cause of action, an implied warranty arises by operation of law and extends for one year from the date of delivery. (Civ. Code § 1791.1(c).) It is not a guarantee that a vehicle is free from all defects; “it provides for a minimum level of quality.” (Tae Hee Lee v. Toyota Motor Sales, U.S.A. Inc. (C.D. Cal. 2014) 992 F. Supp. 3d 962, 979 (quoting Am. Suzuki Motor Corp. v. Superior Ct. (1995) 37 Cal. App. 4th 1291, 1295–96). The fact a plaintiff continues using their vehicle, despite an alleged defect, is evidence that the vehicle remained fit for its ordinary use. (See Id.)

Here,

Defendant submitted evidence that the Subject Vehicle's one-year implied warranty from the manufacturer expired on 3/24/2022. (UMF 1-2.)

The only

period when the facts support that the Plaintiff was not able to use the Subject Vehicle due to issues or repairs was during the 4/18/2022 visit in which the Vehicle was at the dealership for 5 days. (UMF 6.) Recalls Z20, Y76 and RRT1 performed on the 4/18/2022 visit were not a warranty repair arising from an alleged sale defect. (Id.) Plaintiff's failure to present the Subject Vehicle for repairs related to the alleged Engine Defect or any of the related Alleged Issues in their Complaint supports a reasonable inference that the vehicle was fit for ordinary use. (UMF 17-18.) Plaintiff did not submit evidence in opposition which could support a reasonable inference that it was not. Indeed, the Court takes Plaintiff's non-opposition to be a concession on the merits.

Based on the

foregoing, FCA's motion for summary judgment is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.